

UNIT 1: STIPULATING THE LAW RELATED TO FUNCTIONS, MISSIONS AND AUTHORITY OF THE VIETNAM COAST GUARD.

I. INTRODUCTION

The Vietnam Coast Guard law prescribes the status, functions, missions, authority, organisation and operation of the Vietnam Coast Guard; benefits and other policies for the Vietnam Coast Guard; responsibilities of offices, organisations and individuals involved.



Parade of the Vietnam Coast Guard

II. TEXT

The Law on Vietnam Coast Guard was passed by the 14th National Assembly at its 6th Session, on November 19, 2018; Effective from 1/7/2019, including 8 chapters, and 41 articles. The Law concretizes the provisions of the 2013 Constitution, ensuring consistency with the Vietnamese legal system and following international treaties to which the Socialist Republic of Vietnam is a contracting party.

The content of the Law clearly stipulates functions, missions, authority, organisation and operation of the Vietnam Coast Guard; benefits and other policies

for the Vietnam Coast Guard; responsibilities of offices, organisations and individuals involved. In which, the most important is the regulation that the Vietnam Coast Guard shall be a people's armed force and specialised force of the State, playing core roles in enforcing laws, and protecting national security, order and safety at sea.

The introduction of the Law on the Vietnam Coast Guard is an important step toward perfecting the Vietnamese legal system for the management and protection of national seas and islands. At the same time, it is a strong statement of the Vietnamese Party and Nation about their determination to protect national interests, protect sovereignty, sovereign rights, and national jurisdiction at sea by legal, civil, and peaceful measures. The law creates an open and convenient legal corridor for the Vietnam Coast Guard to perform the functions and tasks assigned by the Party, State, and People. At the same time, the Law also creates a legal basis to invoke and explain the legitimacy and representation of the state by the Vietnam Coast Guard, ensuring its similarity with the legislative practice of many countries in the region and the world (*has its own rules*).

In terms of Vietnamese law, the Law on Vietnam Coast Guard details and concretizes the tasks and powers of the Vietnam Coast Guard scattered in some laws such as the Law on National Border, 2003; Law on National Security, 2004; Law on Vietnam Sea, 2012; Law on Handling of Administrative Violations, 2012; Law on Customs, 2014; Law on Protection of Natural Resources, Environment and Islands 2014, Law on Organization of Criminal Investigation Agency 2015, Law on Vietnam Maritime Code, 2015; Law on Criminal Procedure Code, 2015; Law on Criminal Code, 2015, Law on Fisheries, 2017; Law on National Defense, 2018...

In terms of international law, the Law on the Vietnam Coast Guard ensures compatibility and compliance with the provisions of international law, including the 1982 United Nations Convention on the Law of the Sea, the Convention on the maritime network in 1974, amended and supplemented in 1978 – SOLAS 1974; the Convention for the Prevention of Unlawful Acts Against the Safety of Navigation (SUA 88) and the Protocol for the Prevention of Unlawful Acts against the Safety of Navigation in respect of fixed drilling rigs on the continental shelf geography;

Convention on Search and Rescue at Sea 1979 (SAR 19979); Regional Cooperation Agreement on Combating Piracy and Armed Robbery Against Ships in Asia...

The Law of Vietnam Coast Guard was formulated and promulgated to meet the inevitable and necessary requirements of building a force as the core of law enforcement, protecting national security, order, and safety at sea in Vietnam in the new situation. The Law is the document with the highest legal effect, of special importance and political significance for the Vietnam Coast Guard in its organization, operation, and future development. The synchronous and complete implementation of the Vietnam Coast Guard Law is a key task of all levels and sectors in general, and the Vietnam Coast Guard in particular, to improve the efficiency of management and protection of Vietnamese marine areas by activities to ensure law enforcement, administrative handling, and civil nature to match the trend of settling disputes and disagreements between countries by peaceful measures, following the Charter of the United Nations in 1945.

III. GRAMMAR

*Modal verbs

a) Use

The modal verbs include *can, must, may, might, will, would, and should*. They are used with other verbs to express ability, obligation, possibility, and so on. Below is a list showing the most useful modals and their most common meanings:

<i>Modal</i>	<i>Meaning</i>	<i>Example</i>
can	to express ability	I can speak a little Russian.
can	to request permission	Can I open the window?
may	to express possibility	I may be home late.
may	to request permission	May I sit down, please?
must	to express obligation	I must go now.

must	to express a strong belief	She must be over 90 years old.
should	to give advice	You should stop smoking.
would	to request or offer	Would you like a cup of tea?
would	in if-sentences	If I were you, I would say sorry.

b) Form

A modal verb is followed by another verb in the base form (the infinitive without the 'To') and they are not conjugated (we don't add an 'S' in third person).

- Positive:

S + modal verb + V(infinitive)

Eg: The commander can decide on the quantity, composition, equipment, ships and boats of the force.

When patrolling, inspecting and controlling, the Vietnam Coast Guard ships must display the colors of their ships, badges, identification marks and uniform

- Negative:

S + modal verb + not + V (infinitive)

Eg: Foreign ships must not illegally enter Vietnam's waters.

Vietnam Coast Guard cannot stop the ship without detecting signs of law violation

- Interrogative:

Modal verb + S + V(infinitive) ?

Eg: Must I take pilot?

May I know the location of the ship in distress?

IV. VOCABULARY

1	Administrative	/əd'mɪnɪstrətɪv/	a	hành chính
2	armed force	/ɑ:m fɔ:s/	n	lực lượng vũ trang nhân dân
3	Armed Robbery	/ɑ:m 'rɒbəri/	n	cướp có vũ trang
4	Charter	/'tʃɑ:tə(r)/	n	Hiến chương
5	Code	/kəʊd/	n	Bộ Luật
6	compatibility	/kəm,pætə'bɪləti/	n	tính tương thích
7	consistency	/kən'sɪstənsi/	n	tính thống nhất
8	Constitution	/,kɒnstɪ'tju:ʃn/	n	Hiến pháp
9	continental shelf geography	/,kɒntɪ'nentl ʃelf dʒi'ɒɡrəfi/	n	thềm lục địa
10	Convention	/kən'venʃn/	n	Công ước
11	corridor	/'kɒrɪdɔ:(r)/	n	hành lang
12	Criminal Investigation Agency	/'krɪmɪnl ɪn'vestɪ'geɪʃn 'eɪdʒənsi/	n	cơ quan điều tra hình sự
13	Customs	/'kʌstəmz/	n	hải quan
14	dispute	/dɪ'spju:t/	n	tranh chấp
15	enforcement	/ɪn'fɔ:smənt/	n	thực thi
16	Fisheries Law	/'fɪʃəri lɔ:/	n	Luật Thủy sản
17	fixed drilling rig	/fɪkst drɪllɪŋ rɪɡ/	n	giàn khoan cố định
18	function	/'fʌŋkʃn/	n	chức năng
19	inevitable	/ɪn'evɪtəbl/	a	tất yếu
20	invoke	/ɪn'vəʊk/	v	viện dẫn
21	jurisdiction	/,dʒʊərəs'dɪkʃn/	n	quyền tài phán

22	legislative	/ˈledʒɪslətɪv/	n	lập pháp
23	legitimacy	/lɪˈdʒɪtɪməsi/	n	tính chính danh
24	Piracy	/ˈpaɪrəsi/	n	cướp biển
25	provision	/prəˈvɪʒn/	n	quy định
26	Rescue	/ˈreskjuː/	n	Cứu nạn
27	settle	/ˈsetl/	v	giải quyết
28	smuggling	/ˈsmʌɡlɪŋ/	n	buôn lậu
29	sovereignty	/ˈsɒvrənti/	n	chủ quyền
30	specialized force	/ˈspeʃəlaɪz fɔːs/	n	lực lượng chuyên trách
31	stipulate	/ˈstɪpjuleɪt/	v	Quy định
32	synchronous	/ˈsɪŋkrənəs/	a	đồng bộ
33	treaty	/ˈtriːti/	n	điều ước

V. PRACTICE

Exercise 1. Read the text and answer these following questions

1. When was the law on Vietnam Coast Guard valid?
=>
2. How many chapters and articles are there in the Law?
=>
3. Which content does the Law regulate towards the VCG?
=>
4. In the Law, how is the VCG assessed?
=>
5. What does the law create to help the VCG perform its assigned functions and tasks?

- =>
 6. What does the law of the VCG ensure similarities and compliance with?
- =>
 7. How is the command of the course of building the VCG as the core of law enforcement and protecting national security at sea in the new situation?
- =>
 8. Which organizations are responsible for the synchronous and complete implementation of the law on Vietnam Coast Guard?
- =>

Exercise 2. Underline the correct word.

1. In the case of serving humanitarian or peaceful purposes, combating, preventing and controlling crimes and violations of law, the Vietnam Coast Guard **may/ should** operate outside the territorial waters of Vietnam;
2. In case of firing under clause 2 of this Article, officers and soldiers of the Vietnam Coast Guard **must/ might** warn by actions, orders, speech or shoot into the air before opening fire on boats or vessels;
3. Information **can/ would** be compared to the circulating blood vessels connecting all activities of Vietnam Coast Guard ships.
4. The VCG has conducted the work of propagation for the fishermen so that they **have to/ would** not violate other countries' waters or commit illegal, unreported, unregulated fishing.
5. The Vietnamese government has planned to invest in upgrading facilities for the force, including modern ships which **can/ should** operate in bad weather and stay for longer periods at sea.

Exercise 3. Work in pairs. Ask and answer using a superlative form (-est / most / least) and the present perfect with ever.

1 impressive building/visit

2 interesting person/know

3 stressful exam/take

4 long book/read

5 exciting film/see

6 expensive thing/buy



What's the most impressive building you've ever visited?